



8.004 Categorical Eligibility

CFR 246.7 (C) Eligibility Criteria

I. Policy Statement

To qualify for the Program, infants, children, and pregnant, postpartum, and breastfeeding women must reside within the jurisdiction of the District of Columbia and meet the income and nutritional risk criteria as outlined in Policies 8.005, 8.006 and 8.007, respectively.

II. Categories for Eligibility

Category	Description
Pregnant Woman	A pregnant woman. Proof of pregnancy is not required. If there is reason to suspect that a participant has falsely claimed to be pregnant, the Local Agency can request proof of pregnancy be provided within 60 days of certification. Staff will have to choose “bi-monthly issuance” in the Issuance tab under the Benefits screen in HANDS.
Breastfeeding Woman	A woman who breastfeeds an infant at least one time per day, up to infant’s first birthday or until she completely stops breastfeeding before the infant turns one year old. A breastfeeding assessment shall be done before the issuance of food benefits at each certification, mid-cert assessment, when a breast pump is issued, and/or whenever the amount of formula the woman is requesting changes. The results of the assessment shall be documented in Notes in TGIF format, be used to provide individualized breastfeeding support, and to determine the appropriate food packages for her and her infant. NOTE: When a breastfeeding woman who is more than 6 months postpartum stops breastfeeding, she becomes categorically ineligible.
Postpartum Woman	Postpartum non-breastfeeding women up to 6 months after the birth or the end of the pregnancy. See below for more information on categorical eligibility for women who present after fetal or neonatal loss.
Infant	An infant until their 1 st birthday (age one).
Child	A child between the ages of one year and the last day of the month in which the child turns five (5) years old.

NOTE: Participants shall be verbally informed of the length of certification at the time of certification. If the length of certification changes (i.e. change to estimated or actual delivery date) or if the category changes (i.e. breastfeeding category change), participants shall be verbally informed of the revised length of certification when it occurs.



III. Cases of Fetal or Neonatal Loss

If a woman presents with a case of spontaneous abortion (miscarriage), induced abortion, fetal death or neonatal death, the applicant/participant may receive 6 months of food benefits from the date of loss.

Definitions:

- Fetal Death – Spontaneous termination of gestation at ≥ 20 weeks
- Induced Abortion – Elective termination of pregnancy
- Neonatal Death – The death of an infant within 0-28 days of life
- Spontaneous abortion – Spontaneous termination of a gestation at < 20 weeks, or a fetus that weighs < 500 grams

Policies related to classifying women with fetal or neonatal loss as Postpartum Woman:

- Proof of loss (i.e. doctors note) is preferable, and can be mandatory at the LA's discretion.
- A participant arriving to the LA post-loss may be recertified as a Postpartum Woman to receive benefits up to 6 months from the date of loss, as noted on proof of loss or as stated by the participant if no proof is available.
- LAs reserve the right to refuse benefits and services to participants with suspected, or with a past history, of Program abuse.
- If the participant was certified as pregnant without proof, and then returns to certify as post-loss, proof of either pregnancy or loss will be required.
- **Risk Code 321** shall be assigned to women who have had a spontaneous abortion, fetal death, or neonatal death. These participants are considered high-risk; **refer to policy 8.007** for guidance on high-risk participants.

IV. Participants who misrepresent themselves as pregnant or postpartum

Policy 8.015 – Participant Violations and Sanctions indicates that misrepresenting oneself as pregnant and/or as having incurred the loss of a pregnancy (or infant) is considered a misrepresentation of health status - the participant could be sanctioned with having to repay the monetary value of benefits received and incur a one-year disqualification from Program eligibility.

Table 1. Summary of HANDS participant category codes

Pt Code	Description
PG1	Pregnant woman < 18 years old
PG2	Pregnant woman > 18 years old
P	Post Partum Woman
PN+	Woman Partially Nursing Plus (more formula provided than PN)
PN	Woman Partially Nursing
EN	Woman Exclusively Nursing
IEN	Infant Exclusively Nursing
IPN	Infant Partially Nursing
IPN+	Infant Partially Nursing Plus (More formula provided than PN)
IFF	Infant Fully Formula Feeding
C1	Child 12-23 months old
C2	Child 24-35 months old
C3	Child 36-47 months old
C4	Child 48-59 months old